

New legislation

Following on from the Act of 1854, railway administrations were given freedom to formulate basic rules for operation of their lines, provided these were sanctioned by the Governor-General in Council, who could also extend the Act or its part to tramways run by steam locomotives. Learning from the accident that occurred in 1875, the Act gave a clearance for the use of locomotives, after it has been sanctioned by the Governor-General in Council. With regard to safety, rules were laid down that no passenger railways were to open without prior notice of such intentions and thorough inspection. Besides, the Act gave classification for accidents and rules for their reporting. To mitigate the one-sidedness of this Act, within a few years the Act IV of 1883 was passed. The main focus of this Act was protection of the public.

Revised laws

It provided for periodic inspection of all railways by officers appointed for this purpose. The Government of India could now frame rules for the inspection of all railways prior to their opening. With rapid construction and expansion, differences relating to the interchange of traffic arose and the Government was pressed for arbitration. Consequently, the Bill of 1879 was modified to prepare a new draft Bill. Clauses were added to it for settlement of disputes by arbitration. In the modified draft Bill, the Governor-General in Council was vested with the power to appoint a temporary commission, if he felt the need to do so.

The Bill failed to find favour with the guaranteed railway companies. They perceived it to be a violation of their rights under the contracts with the secretary of state. They were particularly against the temporary commission and, on the grounds that the government had ownership and co-ownership of most railways, feared partiality, especially in cases where the interest of the State was at stake. A Select Committee was appointed to advise on the objections. The Committee opined against introducing any clause relating to the rights of the companies under the contracts. It felt that such a clause might lead to a different interpretation of the Act by every company and this would disturb the consistency in the enforcement of the Act. The Bill was passed as Act IX of 1890.